

Easement

Version 3.3 released on 6/29/23

PW0121215



CITY COUNCIL USE ONLY		CITY CLERK USE ONLY	
Date Received:	Tracking #:	☐ Scanned	Date: 04.02.2025
Committee Date:	Committee:	☐ Posted	Item #: 2504.00834
1 st Agenda Date:	Hearing Date:		
	2 nd Agenda Date:		

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details	
Board Approval	Other Board Name
Department Public Works	Contact Name Michelle L. Lester
Easement Type Sanitary Sewer	Email mlester@cityoftulsa.org
Bid/Project Number ES 2022-15	Owner-Grantor Raines Bros. Ranch, LLC
Section 7	Project Title Spunky Creek East Branch C1
Lot	Township 19
Parcel Number 9A	Range 15
	Address Wagoner County
	Council District 6
	Addition UNPLATTED
	Additional Information/Tracking Number

Budget	
Contract Types	Funding Source(s)
☐ No Payments Involved	2131S00004.SewerLines.Sewer.7500N.75003308.541101:
☐ Revenue Contracts	
☒ Expense Contracts	
	TOTAL: \$28.00

Approvals	
Department:	Date: 03.21.25
Legal:	Date: 03/21/2025
Board:	Date:
Mayor:	Date: APR 02 2025
Other:	Date:

Policy Statement	
Background Information	
Project ES 2022-15 - Spunky Creek East Branch C1, Parcel 9A	
The City of Tulsa is planning a sanitary sewer project in the vicinity of the East 11th Street and the Creek Turnpike in Wagoner County. The attached Sanitary Sewer Easement is required for the project. This easement is being donated by Raines Bros.Ranch, L.L.C.	
Payment request is attached to the Wagoner County Clerk for the filing fee (\$28.00).	
PDZ: bob	MSL: HAS
	bh

Summation of the Requested Action	
Mayoral approval and City Council acceptance.	
Other Pertinent Details	

Processing Information for City Clerk's Office	
Post Execution Processing	Additional Routing, Processing or Contact Details
☐ Mail vendor copy (add'l signature copies attached)	Courtney Jones, 6-9549
☒ Must be filed with other governmental entity	
☐ Add'l governmental entity approval(s) required	

2025-RP2-0154

SANITARY SEWER EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **Raines Bros. Ranch, LLC, an Oklahoma limited liability company**, (Grantor), the owner of the legal and equitable title to the following real estate situated in Tulsa County, State of Oklahoma, for and in consideration of the sum of One Dollar (\$1.00) from the City of Tulsa, Oklahoma, a municipal corporation (City), and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City of Tulsa, Oklahoma, a permanent easement through, over, under and across the following described property, situated in said County, to-wit:

See Exhibit "A"

for the purpose of permitting the City to construct a **sanitary sewer** thereon, through, over, under and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same, and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantor, for itself and administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor, or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantor, its administrators, successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 28 day of February, 2025.

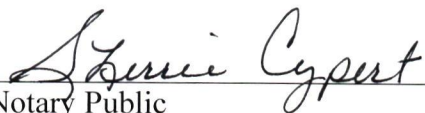
Raines Bros. Ranch, LLC
an Oklahoma limited liability company,

By: 
Michael A. Raines, Manager

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

This instrument was acknowledged before me on this 28 day of February, 2025,
by **Michael A. Raines, Manager**, Raines Bros. Ranch, LLC, an Oklahoma limited liability company.

Given under my hand and seal of office the day and year last above written.


Notary Public

My commission expires:

11-23-2028



APPROVED AS TO FORM:



City Attorney - *asst.*

APPROVED AS TO SUBSTANCE:



Director

ACCEPTED BY CITY COUNCIL:

Date: _____

BY: _____
Name: Phil Lakin, Jr.
Title: Chairman

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2025, personally appeared **Phil Lakin, Jr.**, to me known to be the identical person who accepted the within and foregoing instrument as **Chairman** of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he accepted the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City Council of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

APPROVED BY MAYOR:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____

Name: Monroe Nichols IV

Title: Mayor

ATTEST:

City Clerk

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2025, personally appeared **Monroe Nichols**, to me known to be the identical person who approved the within and foregoing instrument as **Mayor** of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

PARCEL NO. 9A
COUNTY WAGONER

LEGAL DESCRIPTION

RAINES BROS. RANCH LLC
PERMANENT EASEMENT

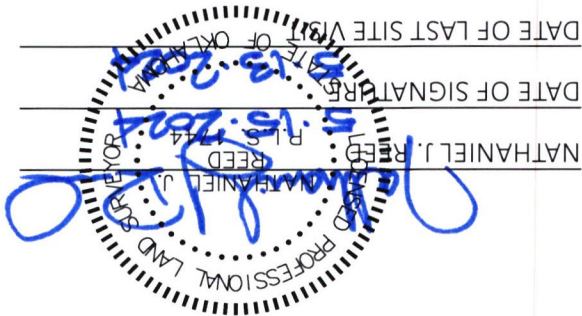
A TRACT LAND LOCATED IN THE SOUTHEAST QUARTER (SE/4), SECTION SIX (6), TOWNSHIP NINETEEN (19) NORTH, RANGE 15 EAST OF THE INDIAN BASE AND MERIDIAN, WAGONER COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID SE/4; THENCE NORTH 88°25'55" EAST AND ALONG THE SOUTH LINE OF SAID SE/4, FOR A DISTANCE OF 281.65 FEET TO THE **POINT OF BEGINNING**; THENCE NORTH 42°02'24" EAST, FOR A DISTANCE OF 68.91 FEET; THENCE NORTH 88°26'59" EAST, FOR A DISTANCE OF 69.03 FEET; THENCE SOUTH 42°01'20" WEST, FOR A DISTANCE OF 68.86 FEET TO A POINT ON SAID SOUTH LINE; THENCE SOUTH 88°25'55" WEST AND ALONG SAID SOUTH LINE, FOR A DISTANCE OF 69.08 FEET TO THE **POINT OF BEGINNING**. CONTAINING 3,445.52 SQUARE FEET OR 0.08 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

REAL PROPERTY CERTIFICATION:

I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

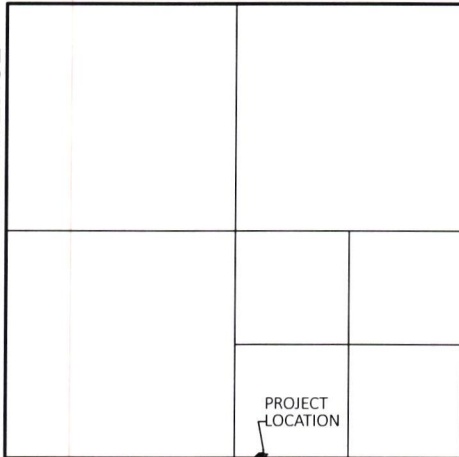


NATIVE PLAINS
Surveying & Mapping, LLC
A Native American Owned Business
5807 South Garnett Road, Suite K, Tulsa, Oklahoma, 74146
Telephone: 918.234.7596, Fax: 918.893.5552
Expires June 30, 2025
Certificate of Authorization No. 4916

EAST ARCHER STREET/I-44

PLAT OF SURVEYPARCEL NO. 9ARAINES BROS. RANCH LLC
PERMANENT EASEMENTCOUNTY WAGONER

SOUTH 193rd EAST AVENUE



SOUTH 209th EAST AVENUE

EAST 11th STREET SOUTH

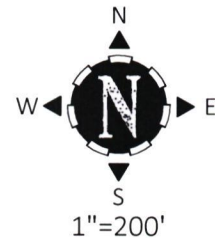
LEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE SE/4 OF SECTION 6, TOWNSHIP 19 NORTH,
RANGE 15 EAST, WAGONER COUNTY, STATE OF
OKLAHOMA

SEC 6 T 19 N R 15 E

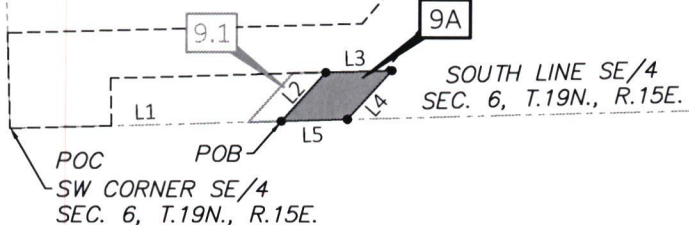
TEMPORARY EASEMENT	0.00	SF	0.00	ACRES
PERMANENT EASEMENT	3,445.52	SF	0.08	ACRES

SE/4 SEC. 6, T.19N., R.15E.
 RAINES BROS. RANCH LLC
 GENERAL WARRANTY DEED
 BOOK 2123, PAGE 506

SANITARY SEWER AND
 ACCESS EASEMENT TO CITY
 OF TULSA, BOOK 1877,
 PAGES 658-665



LINE	BEARING	DISTANCE
L1	N 88°25'55" E	281.65'
L2	N 42°02'24" E	68.91'
L3	N 88°26'59" E	69.03'
L4	S 42°01'20" W	68.86'
L5	S 88°25'55" W	69.08'

WEST LINE SE/4
SEC. 6, T.19N., R.15E.**LEGEND**

POB POINT OF BEGINNING

POC POINT OF COMMENCEMENT

- 3/8" IRON PIN SET w/CAP (#4916)

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE
 COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

I, NATHANIEL J. REED OF THE STATE OF OKLAHOMA,
 AND A PROFESSIONAL SURVEYOR, DO HEREBY
 CERTIFY THAT THE ABOVE SHOWN PLAT OF SURVEY
 IS TRUE AND CORRECT TO THE BEST OF MY
 KNOWLEDGE AND MEETS THE MINIMUM
 TECHNICAL STANDARDS FOR LAND SURVEYING OF
 THE STATE OF OKLAHOMA.

NATHANIEL J. REED, P.L.S. 1744

DATE OF SIGNATURE

DATE OF LAST SITE VISIT

EXHIBIT "A"

MUNIS for ES 2022-15

As of 3/12/2025

Project string

	Project *	2131S00004	Spunky Creek MS Interceptor S - C1
	Phase *	SewerLines	Sewer lines
	Task *	Sewer	Sewer projects
	Sub-Task *	7500N	TMUA Sewer Capital Projects

Name * Spunky Creek MS Interceptor S

Short Name * Spunky Crk

Status Active ▼

Projected date range 03/24/2021 to 03/24/2025

Actual date range to

Project String Balances

GL Accounts



Project Year 2025

Original Budget	.00	{
Transfers - In	170,862.86	{
Transfers - Out	-862.81	{
Revised Budget	982,373.88	
Actual (Memo)	42,086.24	{
Encumbrances	104,598.73	{
SOY Encumbrances	.00	
Requisitions	.00	{
Inception to SOY	493,030.92	
Available	342,657.99	
Percent Used	65.12	

Default GL account

Fund SubFund

Org Object

75003308

541101

MUNIS

INVOICE COVER SHEET

Vendor Name and Address

Wagoner County Clerk

Department #: 32- Public
Works

Date: 3/12/2025

Special Handling☐ Wire Transfer☒ Will Pick up

Email: PWAdmin@cityoftulsa.org

ACCOUNTS PAYABLE USE

Allocation code: _____

MUNIS VENDOR NUMBER

2154-2

MUNIS CONTRACT #**PROJECT STRING** (if applicable)**ORG****OBJECT****AMOUNT**

2131S00004.SewerLines.Sewer.7500N

75003308

541101

\$28.00

\$0.00

\$0.00

INVOICE NUMBER/DESCRIPTION

Filing Fees

Project ES 2022-15

Parcel 9A

REMARKSPurchase
Authority☐

Special Approval

☐

Exception

☐

Contract

Invoice

☐

Original Attached

☐

Prepay (Attach form)

☐

Refund

Affidavit

☒Affidavit attached (form TUL-373)
For invoices over \$25,000☐

Not applicable

Prepared by: Bruce Hutton

Munis Workflow approval

Date: 3/12/2025